

against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (C.C.P. §2033.290(d).) Plaintiff did not act with substantial justification, and no other circumstances make imposition unjust. Indeed, in the meet and confer process, plaintiff indicated her willingness to be sanctioned. **Sanctions of \$1,000 are awarded, to be paid within 14 days of notice of entry of this order.**

21. 9:00 AM CASE NUMBER: MSN21-0558
CASE NAME: CITY OF VALLEJO, A MUNICIPAL CORPORATION VS. STATE OF CALIFORNIA STATE DEPARTMENT OF WATER RESOURCES, A CALIFORNIA STATE AGENCY
***HEARING ON MOTION IN RE: TO STRIKE OR TAX PETITIONER'S COSTS**
FILED BY: THE CALIFORNIA DEPARTMENT OF WATER RESOURCES, A CALIFORNIA AGENCY
TENTATIVE RULING:

Respondents and Real Party in Interest move to strike or Tax Petitioner’s costs, in the amount of \$6,727.69. No party has opposed the motion.

In the underlying case, a group of petitioners sought relief under CEQA, raising a variety of alleged inadequacies in the Environmental Impact Report for the project. They succeeded only on one issue, i.e., consideration of impact of the project on shoreline fishing within the project area. That particular issue was raised by two of the many petitioners, Reclamation District No. 2060 and Reclamation District No. 2068. The environmental documentation was revised, and found satisfactory by the Court (over some opposition) in a writ return proceeding.

Under Code of Civil Procedure section 1032(a)(4), “If any party recovers other than monetary relief... the ‘prevailing party’ shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides.”

Judged by the overall scale of the project and the number of inadequacies alleged in the Environmental Impact Report, the Court does not conclude that petitioners were the prevailing party in the action. Accordingly, the **motion to strike costs is granted.**

22. 9:00 AM CASE NUMBER: N23-0409
CASE NAME: ALEXANDRA PADILLA VS. BRIAN DEMAINE
HEARING IN RE: JOINDER IN DEF'S MOTION FOR TERMINATING AND MONETARY SANCTIONS AGAINST PLAINTIFF
FILED BY: DEMAINE, BRIAN KEITH
TENTATIVE RULING:

The Court will not repeat the events that have led to this point, which are well-chronicled in the Court’s two prior orders in the case.

Plaintiff appeared at her deposition, without counsel. She declined to answer a number of questions,

on grounds of work product, and attorney-client privilege (although at this time, she has no attorney). Moving parties may have grounds for a motion to compel further responses to her deposition. The issues from the deposition, even in combination with the earlier conduct that resulted in substantial monetary sanctions, are sufficient to lead the Court to conclude that a terminating sanction is not warranted at this time. Whether it would be granted if she again fails to fulfill her discovery obligations could be the subject of a renewed motion. For now, **the motion for terminating or evidentiary sanctions is denied.**

23. 9:00 AM CASE NUMBER: N23-0409
CASE NAME: ALEXANDRA PADILLA VS. BRIAN DEMAINE
***HEARING ON MOTION IN RE: (SECOND MOTION) TERMINATING AND MONETARY SANCTIONS**
AGAINST PLAINTIFF FOR FAILURE TO OBEY COURT ORDER
FILED BY: DEMAINE, BRIAN KEITH
TENTATIVE RULING:
See line 22.

24. 9:00 AM CASE NUMBER: N23-0409
CASE NAME: ALEXANDRA PADILLA VS. BRIAN DEMAINE
***HEARING ON MOTION IN RE: TERMINATING AND MONETARY SANCTIONS AGAINST PLTF**
FILED BY: HOWARD ORTHOPEDICS, INC., A CALIFORNIA CORPORATION
TENTATIVE RULING:
See line 22.